

Sri Venkateswara Veterinary University, Act, 2005

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State of Andhra Pradesh - Act

Sri Venkateswara Veterinary University, Act, 2005

ANDHRA PRADESH

India

Sri Venkateswara Veterinary University, Act, 2005

Act 18 of 2005

Published on 1 January 2005

Commenced on 1 January 2005

[This is the version of this document from 1 January 2005.]

[Note: The original publication document is not available and this content could not be verified.]

Sri Venkateswara Veterinary University, Act, 2005

(Act

No. 18 of 2005

)

Last Updated 12th September, 2019

An Act to provide for the establishment and incorporation of a veterinary university in the state of andhra pradesh and the matters connected therewith or incidental thereto.

Be it enacted by the Legislative Assembly of the State of Andhra Pradesh in the Fifty-sixth year of the Republic of India as follows:

CHAPTER - I Preliminary

1.

Short title, extent, commencement and application.

(1)

This Act may be called Sri Venkateswara Veterinary University, Act, 2005.

(2)

It extends to the whole of the State of Andhra Pradesh.

(3)

It shall come into force on such date as the Government may, by notification, in the Andhra Pradesh Gazette, appoint.

(4)

(i)

It shall apply in the first instance to the colleges, the Polytechnics, Research Stations and Schemes and Institutions shown in the first and second schedules.

(ii)

The Government may, by Notification, apply the provisions of this Act to any other college or institution with effect on and from such date as they may specify in this behalf.

2.

Definitions.

- In this Act, unless the context otherwise requires:-

(a)

"academic council" means the Academic Council of the University;

(b)

"appointed day" means the date appointed under subsection (3) of section 1 for the coming into force of this Act;

(c)

"authority" means any Authority of the University specified in section 18;

(d)

"board" means the Board of Management of the University;

(e)

"faculty" means a Faculty of the University;

(f)

"government" means the state Government;

(g)

"officer" means any Officer of the University specified in section 9;

(h)

"prescribed" means prescribed by the statutes or regulations;

(i)

"registrar" means the Registrar of the University;

(j)

"registered graduate" includes a graduate in veterinary sciences registered under conditions prescribed in this behalf;

(k)

"regulations" means the regulations of the University made under this Act;

(l)

"statutes" means the statutes of the University made under this Act;

(m)

"student" includes a person enrolled in the University for taking a course of study for a degree, diploma or other academic distinction duly instituted, or for undergoing any training;

(n)

"teacher" includes a professor, an Associate Professor, an Assistant Professor, Reader, lecturer or other person appointed or recognized by the University for the purpose of imparting instruction of conducting and guiding research or extension programmes, and any person declared by the statutes to be a teacher;

(o)

"university" means Sri Venkateswara Veterinary University constituted under section 3;

(p)

"university college" means a college established or maintained by the University and providing courses of study qualifying students for admission to the University examinations in accordance with the regulations;

(q)

"veterinary sciences" means and includes Veterinary, Animal Avian, Dairy and Fishery Sciences.

Chapter - II The University

3.

Constitution of the University.

(1)

There shall be constituted in, and for, the state of Andhra Pradesh a University by the name of Sri Venkateswara Veterinary University which shall consist of a Chancellor, a Vice-Chancellor a Board of Management and an Academic Council.

(2)

The University shall be a body corporate having perpetual succession and a common seal and shall sue and be sued by the said name.

(3)

In all suits and other legal proceedings by or against the University, the pleadings shall be signed and verified by the Registrar and all processes in such suit and proceedings shall be issued to, and served on him.

(4)

The Headquarters of the University shall be at Tirupati in Chittoor District.

4.

Objects of the University.

- The Objects of University among others shall be to impart education in different branches of Veterinary, Animal and Fishery Sciences; to undertake the extension of such Sciences to the rural people of the State of Andhra Pradesh; and to promote research, field and extension programmes, production and postharvest technology including processing and marketing in Veterinary, Animal and Fishery Sciences.

5.

University open to all persons.

- The university shall subject to the provisions of this Act and the statutes, be open to all persons; but nothing in this section shall be deemed to required the University to admit to any course of study a larger number of students than may be prescribed:

Provided that the Government may reserve seats in Colleges under the University for the members of the Socially and Educationally Backward Classes, the Scheduled Castes and the scheduled Tribes as specified under articles 341 and 342 of the constitution of India in accordance with such principles as may, from time to time be determined by the Government in this behalf.

6.

Powers and Functions of the University.

- The University shall have the following powers and functions namely:-

(a)

to provide for instruction, training the research in Veterinary Science;

(b)

to provide for the advancement and dissemination of knowledge in the files and extension programmes in veterinary Sciences;

(c)

to institute courses of study and to hold examinations for, and to confer, degrees, diplomas, certificates and other academic distinctions on persons who have pursued a course of study, or carried on research in the University or in an institutions recognized in this behalf by the University, as may be prescribed;

(d)

to confer honorary degrees or other academic distinctions, as may be prescribed;

(e)

to create teaching, research and extension posts required by the University and to appoint qualified persons to such posts;

- (f)
to institute and award fellowships including traveling fellowships, scholarships, studentships and prizes in accordance with the statutes;
- (g)
to acquire, hold and dispose of property, and to enter into contracts and to do all other things necessary for, or incidental to the objectives of the University;
- (h)
to take over and maintain colleges relating to Veterinary Sciences and hostels therefore;
- (i)
to borrow money from the Government of India, any State Government or any other agency;
- (j)
to establish and maintain the University Colleges and hostels therefore;
- (k)
to fix, demand and receive such fees and other charges as may be prescribed;
- (l)
to provide such lectures and instructions for and to grant such diplomas to field workers, and other persons, as the University may determine;
- (m)
to regulate the conduct of students, to maintain discipline among them and to make arrangements for promoting their health and welfare;
- (n)
to create administrative, ministerial and other necessary posts and to make appointments thereto;
- (o)
to cooperate with other Universities and authorities in such manner and for such purposes, as the University may determine; and
- (p)
to do all such acts and things, as may be necessary for the furtherance of the objects of the University.

7.

Residence.

- Every student shall reside in a hostel, or under such conditions as may be prescribed.

8.

Visitation.

(1)

The Government shall have the right to cause an inspection to be made by such person or authority, as they may direct of the affairs and properties of the university or any college or institution maintained by the University and to cause an inquiry to be made in respect of any matter connected therewith.

(2)

Before causing such an inspection or enquiry, intimation thereof shall be given to the University, which shall be entitled have its nominee or nominees at such inspection or enquiry and to make representations in regard thereto.

(3)

The Government shall forward to the Board a copy of the report of inspection or enquiry for expressing its views and on receipt thereof, they may tender such advice or give such direction as they may consider necessary, and fix a time limit for action to be taken by the Board in that regard. The Board shall, within the time so fixed, take necessary action and report the fact to the Government.

CHAPTER - III Officers of the University

9.

Officers of the University.

- The following shall be the Officers of the University, namely

(i)

the Chancellor

(ii)

the Vice-Chancellor

(iii)

the Registrar

(iv)

the Comptroller

(v)

the Dean of Student Affairs

(vi)

the Deans of the various Faculties

(vii)

the Director of Research

(viii)

the Director of Extension

(ix)

the Controller of Examination

(x)

the Estate Officer and

(xi)

such other persons in the service of the University as may be prescribed

10.

The Chancellor .

- The Governor of Andhra Pradesh shall be the Chancellor of the University. He shall, by virtue of his office, be the head of the University, and shall, when present, preside at any convocation of the University. He shall exercise such other powers as may be conferred on him by or under this Act.

11.

Vice-Chancellor.

(1)

The Vice-Chancellor shall be a whole time officer and shall be appointed by the Chancellor in the manner prescribed. He shall be paid such salary per mensem as may be prescribed.

(2)

The Vice-Chancellor shall hold office for a term of three years and shall be eligible for re-appointment for another term of three years.

(3)

The conditions of service other than the emoluments of the Vice-Chancellor shall be such as may be prescribed and shall not be varied to his disadvantage after his appointment.

(4)

The Vice-Chancellor may, by writing under his hand addressed to the Chancellor, resign his office. The resignation shall be delivered to the Chancellor ordinarily sixty days prior to the date on which the Vice-Chancellor wishes to be relieved of his office, but the Chancellor may relieve him earlier. The resignation shall take effect from the date of relief.

(5)

In the temporary absence of the Vice-Chancellor due to leave, or for whatever reason, or until the vacancy caused in any manner is filled, the Chancellor shall appoint any person temporarily to act as Vice-Chancellor.

(6)

Where the post of the Vice-Chancellor falls permanently vacant either by resignation or otherwise, the vacancy shall be filled by the Chancellor in accordance with the provisions of sub-section (1) and the Vice-Chancellor so appointed shall hold office for a full term of three years.

(7)

If, in the opinion of the Chancellor, the Vice-Chancellor willfully omits or refuses to carry out the provisions of this Act or abuses the powers vested in him and if it appears to the Chancellor that the continuance of the Vice-Chancellor in office is detrimental to the interests of the University, the Chancellor may, by order, remove the Vice-Chancellor, after giving him an opportunity of showing cause against the action proposed to be taken in regard to him.

12.

Powers and duties of the Vice-Chancellor.

(1)

The Vice-Chancellor shall be the academic head and principal Executive Officer of the university and shall, in the absence of the Chancellor, preside at any convocation of the University.

(2)

It shall be the duty of the Vice-Chancellor to ensure the faithful observance of the provisions of this Act and the statutes and he may exercise such powers as may be necessary for this purpose.

(3)

The Vice-Chancellor shall have power to convene the meeting of the academic council.

(4)

The Vice-Chancellor shall exercise general control over the University and its affairs and shall be responsible for the due maintenance of discipline in the University.

(5)

The Vice-Chancellor shall be responsible for the presentation of the budget and the statement of accounts to the Board.

(6)

Subject to the Control of the Chancellor, in any emergency which, in the opinion of the Vice-Chancellor, requires, immediate action to be taken, he shall take such action as he deems necessary, and shall at the earliest opportunity intimate the action taken to the officer, authority or other body who or which in the ordinary course would have dealt with the matter.

(7)

Where any action taken by the Vice-Chancellor under subsection

(6)

affects any person in service of the University to his disadvantage, such person may prefer an appeal to the Board within 30 days from the date on which such person has notice of the action taken.

(8)

The Vice-Chancellor shall give effect to the decisions of the authorities of the University taken in accordance with the powers conferred by or under this Act.

(9)

The Vice-Chancellor shall be responsible for a close coordination and integration of teaching, research and extension.

(10)

The Vice-Chancellor shall exercise such other powers as may be prescribed.

13.

The Registrar.

(1)

The Registrar shall be a whole time officer and shall be appointed by the Board in the manner prescribed.

(2)

The salary and allowances payable to the Registrar and the conditions of service shall be such as may be prescribed: Provided that the conditions of service of the Registrar shall not be varied to his disadvantage after his appointment.

(3)

The Registrar shall be responsible for the due custody of the records and the common seal of the University. He shall be ex-officio Secretary of the Board and of the Academic Council, and shall be bound to place before it all such information as may be necessary for the transaction of its business. He shall receive applications for admission into the University and shall keep a permanent record of all courses, curricula and other information as may be necessary.

(4)

The Registrar may, by writing under his hand addressed to the Board, resign his office. The resignation shall be delivered to the Board ordinarily Sixty days prior to the date on which the Registrar wishes to be relieved of his office but the Board may relieve him earlier. The resignation shall take effect from the date of relief.

(5)

In the temporary absence of the Registrar due to leave or for whatever reason, or until the vacancy caused in any other manner is filled, the Vice-Chancellor shall appoint any person temporarily for a period not exceeding three months, to

act as the Registrar.

(6)

The Registrar shall be responsible for the conduct of the examinations and for the due execution of all processes connected therewith.

(7)

The Registrar shall discharge such other duties and perform such other functions as may be prescribed or required, from time to time, by the Board or the Vice-Chancellor.

14.

The Comptroller .

(1)

The Comptroller shall be a whole time officer and shall be appointed by the Board in the manner prescribed.

(2)

He shall be paid such salary and allowances as may be prescribed.

(3)

The provisions relating to conditions of service of Vice-Chancellor other than emoluments, registration, filling of temporary vacancies contained in sub-sections (3), (4) and (5) of section 11, shall apply to the office of the Comptroller subject to the variation that for the expressions "Vice-Chancellor" and "Chancellor", the expressions "Comptroller and "Board" shall respectively by substituted.

(4)

The Comptroller shall manage the property, finances and the investments of the University and tender advise in regard to its financial policy. He shall be responsible for the preparation of the budget and statement of accounts for presentation to the Vice-Chancellor.

(5)

The Comptroller shall be responsible for ensuring that no expenditure not duly authorized is incurred by the University otherwise than by way of investment and shall disallow any expenditure which may contravene the terms of any statute or for which provision is required to be made by the statute but has not been made.

15.

Powers and duties of the Registrar and the Comptroller exercisable by a single person.

- The Board may direct, that the powers and duties of the Registrar and the Comptroller shall be exercised and performed by a single person for such period as it deems fit.

16.

Dean of Student Affairs.

(1)

The Dean of Student Affairs shall be a whole time officer and shall be appointed by the Board in the manner prescribed.

(2)

The salary and allowances payable to the Dean of Students Affairs shall be as may be prescribed.

(3)

The Dean of Student Affairs shall have the following duties namely:-

(a)

to make arrangements for the housing of students;

(b)

to arrange a programme of student counseling;

(c)

to arrange for the employment of students in accordance with the plans approved by the Vice-Chancellor;

(d)

to supervise the extracurricular activities and to look after the needs of student;

(e)

to assist in the placement of graduates of the University; and

(f)

to organize and maintain contact with the alumni of the University.

17.

Officers not to accept any remuneration from any source other than that provided by statutes.

- No officer shall accept any remuneration from any source other than the remuneration to which he is entitled under the statutes.

CHAPTER - IV Authorities of the University

18.

Authorities of the University.

- The following shall be the Authorities of the University namely: -

(i)

the Board of Management;

(ii)

the Academic Council;

(iii)

the Board of faculties;

(iv)

Finance committee;

(v)

Planning Board; and

(vi)

Such other bodies as may be prescribed.

19.

Constitution of the first Board.

(1)

The Chancellor shall, as soon as the first Vice-Chancellor is appointed under sub-section (1) of section 11 take action to constitute the Board. The Board of Management shall be constituted in such a manner so that the continuity is ensured.

(2)

The Board shall consists of the following members, namely:-

Ex-Officio Members:

(a)

the Vice-Chancellor;

(b)

the Secretary to Government, Animal Husbandry Department;

(c)

the Secretary to Government, Finance Department;

(d)

the Director of Animal Husbandry;

(e)

the Commissioner of Fisheries.

Other Members

(f)

One person to be nominated by the Chancellor from the members of the Indian Council of Agricultural Research;

(g)

One persons who is in the opinion of the Chancellor a distinguished veterinary / Fishery Scientist, nominated by the Chancellor;

(h)

Three persons from the Academic Council to be nominated by the Chancellor;

(i)

Four persons nominated by the Chancellor from among the members of the State Legislature and the members of parliament elected from the State of Andhra Pradesh.

(j)

Three persons nominated by the Chancellor from amongst the progressive farmers in Livestock, Poultry and Fishery sectors of whom one shall be a woman;

(k)

One person nominated by the Chancellor from amongst the members of the State Veterinary Council;

(l)

Two persons nominated by the Chancellor from among the industrialists in Livestock, Poultry and Fishery sectors;

(3)

The Vice-Chancellor shall be ex-officio Chairman of the Board, and shall conduct the meetings of the Board in accordance with the statutes made in that behalf.

(4)

The term of office of Members of the Board other than exofficio members shall be three years:

Provided that no member of the Board who is nominated shall continue to be a member of the Board on his ceasing to hold the office by virtue of which he has been nominated as member of the Board:

Provided further that even if some of the members are nominated at different times to the Board under items (f) to (l) of sub-section (2), the term of three years in their case shall be reckoned from the date on which the notification constituting the Board was first issued.

(5)

The Members of the Board shall be entitled to receive such daily and traveling allowances as may be prescribed but not to any remuneration.

20.

Powers and functions of the Board.

(1)

The Board shall exercise and perform the following powers and functions, namely:-

(a)

to approve the budget of the University presented by the Vice-Chancellor ;

(b)

to appoint the teachers of the University and such other employees of the University as may be prescribed on the recommendation of the selection committee under section 34:

Provided that the Board may invite any person of High academic distinction and professional attainments to accept the post of Professor in the University and appoint him to that post.

(c)

to acquire any property for the University and to hold or dispose off its properties;

(d)

to accept any property on behalf of the University;

(e)

to provide for the administration of any funds placed at the disposal of the University for the purposes intended;

(f)

to arrange for the investment and withdrawal of money of the University;

(g)

To direct the form and use of the common seal of the University;

(h)

To appoint such committees, either standing or temporary as the Board may consider necessary;

(i)

to determine and regulate all policies relating to the affairs of the University in accordance with this act and the statutes.

(2)

The Board shall meet at such time and place as it deems necessary but it shall hold a meeting at least once in every two months, and not less than half the number of its meetings in a year shall be held at headquarters of the University.

(3)

The Board may, for purposes of consultation, invite any person having practical experience or special knowledge of any subject under its consideration to attend its meeting. Such person shall have the right to speak in, and otherwise to take part in the proceedings of such meeting, but shall not by virtue of this sub section, be entitled to vote at any such meeting. A person attending any such meeting shall be entitled to such allowances as may be prescribed.

21.

The Academic Council.

(1)

The academic Council shall consist of the following Members, namely:-

(a)

the Vice-Chancellor of the University;

(b)

the Vice-Chancellor of the NTR University of Health Sciences and Acharya N.G. Ranga Agricultural University;

(c)

the Director of Animal Husbandry;

(d)

the Commissioner of Fisheries;

(e)

the Directors of Research and Extension;

(f)

the Deans of the Various Faculties;

(g)

the Dean of Student Affairs;

(h)

the University Heads of Departments;

(i)

the Associate Deans;

(j)

the Associate Directors of Research;

(k)

the Controller of Examinations;

(l)

two members of the Board of management nominated by the Vice-Chancellor;

(m)

four persons having special knowledge or practical experience in different aspects of Veterinary Sciences nominated by the Vice-Chancellor;

(n)

Executive Officer, Tirumala Tirupati Devasthanams.

(2)

The academic Council may co-opt as members, not more than five persons, for such period and in such manner, as may be prescribed so as to secure adequate representation of different aspects of Veterinary Sciences.

(3)

The Vice-Chancellor shall be ex-officio chairman of the Academic Council.

22.

Powers Functions and duties of the Academic Council.

(1)

the Academic Council shall be in-charge of the academic affairs of the University and shall, subject to the provisions of this Act and the statutes, supervise, direct and control, and be responsible for, the maintenance of standards of instruction, education and examinations and other matters connected with the obtaining of degrees, diplomas and certificates and shall exercise such other duties as may be laid down by or under this Act.

(2)

In particular and without prejudice to the generality of the forgoing power, the Academic Council shall be entitled to,-

(a)

advise the Vice-Chancellor and the Board on all academic matters, including the control and management of the libraries;

(b)

make recommendations to the Board,-

- (i)
for the institution of the professorships, associate professorships, assistant professorships, teacherships and other teaching posts and matters connected therewith;
- (ii)
regarding the post-graduate teaching, research and extension;
- (c)
formulate, modify, revise or rescind schemes in connection with the constitution or reconstitution of departments of teaching, research and extension; and
- (d)
make regulations,-
- (i)
regarding the admission of students to the University;
- (ii)
regarding the examinations and the conditions on which students shall be admitted thereto;
- (iii)
relating to courses of study of degrees, diplomas and certificates.

23.

Faculties.

- (1)
The University shall have the Faculties of Veterinary Science, Dairy Science and Fishery Science and such other Faculties as may be prescribed.
- (2)
Each faculty shall comprise such departments with such assignment of subjects of study as may be prescribed.
- (3)
There shall be a Board for each Faculty, the constitution and powers of which shall be prescribed.
- (4)
There shall be a Dean for each faculty who shall be appointed in such manner and for such period, as may be prescribed.
- (5)
The Dean shall be the Chairman of the Board of the Faculty and be responsible for the faithful observance of the statutes and regulations relating to the Faculty and for the organization and conduct of the teaching, research and extension work of the departments comprised therein.
- (6)
Each department shall have a head, whose appointment, powers and duties shall be as prescribed, and who shall be responsible to the Dean for the proper organization and working of the department.

24.

Finance Committee.

- (1)
The Board shall constitute a Finance Committee consisting of the following persons namely:-
- (a)
the Vice-Chancellor;
- (b)
the Comptroller;
- (c)
two members chosen by the Board from among its members.
- (2)
The Finance Committee shall have the following powers and duties; namely:-
- (a)
to examine the accounts of the University and its annual budget estimates and to advise the Board in respect thereof;
- (b)
to review the financial position of the University from time to time; and

(c)

to make recommendations to the Board on all proposals involving expenditure, for which no provision or inadequate provision has been made in the budget, or in excess of the budget provision.

25.

The Planning Board.

(1)

The Planning Board shall be the Principal Planning body of the University and shall be responsible for monitoring the development of the University on the lines indicated in the objects of the University.

(2)

The Constitution of Planning Board and its powers and functions shall be such as may be prescribed by the statutes.

26.

Constitution of Committees.

- Every Authority shall have power to constitute committees which may, unless otherwise provided in this Act, consist of the Members of the Authority and such other persons as it nominate.

27.

Filling of Casual vacancies.

- Any Casual vacancy among the members, other than ex-officio members, of any authority shall be filled as soon as conveniently may be, by the person, or authority who appointed, nominated or co-opted the member whose place has become vacant and the person appointed or nominated or co-opted to a casual vacancy shall be a member of such authority for the residue of the term of the person whose place he fills.

28.

Removal from membership of any authority.

- The Board shall remove any person from the membership of any authority on the ground that such person was convicted of an offence involving moral turpitude.

29.

Decision on question as to validity of membership, Act or proceeding.

- Where any question arises whether a person has been duly nominated or appointed as, or is entitled to be, a member of an authority other than the Board or whether any act or proceeding of an authority including the Board is consistent with this Act and the statutes, it shall be referred to the Chancellor, whose decision thereon shall be final.

30.

Act or proceeding of any authority not to be invalidated by reason only of certain defects.

- No act or proceeding of any authority shall be deemed to be invalid by reason only, of any defect in the constitution of such authority or the existence of any vacancy among its members.

Chapter - V Research and Extension

31.

Veterinary Sciences Experiment Stations.

(1)

The University may establish and maintain one or more Veterinary Sciences Experiment Stations for research, both fundamental and applied in all faculties, in addition to the maintenance of institutions which stand transferred to the university under section 46, the Board shall appoint, in the manner prescribed, a person who had expertise in Veterinary Sciences as the Director of Veterinary Experiment Stations. The Director shall institute, guide and coordinate all Veterinary Research and be responsible for the efficient working of such stations.

(2)

The University may, at any time, with the approval of the Government close down, either permanently or temporarily any of the Veterinary Sciences Experiment Stations specified in Sub-station (1).

32.

Veterinary Sciences Extension Service.

(1)

The University shall establish the Veterinary Science Extension Service for the purpose of , -

(a)

undertaking extension programmes in a phased manner covering the entire state of Andhra Pradesh in such manner

may be determined by the Government in consultation with the Board;

(b)
dissemination of information for the solution of problem relating to Veterinary and Fishery Fields;

(c)
establishment of youth clubs for developing the interests of young people in Veterinary Sciences; and

(d)
for such other purposes as may be prescribed.

(2)
The Board shall appoint in the manner prescribed a person who has expertise in Veterinary Sciences as the Director of Veterinary Sciences Extension Service. He shall be responsible for dissemination of such information and planning and execution of programmes of extension work based upon the results on research.

33.
Co-ordination in research and extension work. - The Government shall endeavour to secure proper co-ordination between the departments of the Government and the University in the conduct of research and extension work and may tender necessary advise to the Board in that regard.

CHAPTER - VI Appointment of the Teachers, etc.,

34.
Constitution of Selection Committee for appointment of Officers and teachers of a faculty.

(1)
The Board shall constitute a selection committee in regard to the appointment of teachers for each faculty which shall consist of the following persons, namely:-

(i)
the Vice-Chancellor who shall be ex-officio Chairman of the Committee;

(ii)
the Dean of Faculty concerned; and

(iii)
three experts in the case of selection of Professors, two experts in the case of selection of Associate Professors and one expert in the case of selection of Assistant Professors nominated by the Board, the experts being from outside the University, having special knowledge of the subject concerned.

(2)
The teachers of a Faculty shall be appointed by the Board on the recommendation of the Selection Committee of that Faculty and their remuneration and other conditions of service shall be such as may be prescribed.

(3)
The appointment of non-teaching staff and other employees shall be as may be prescribed.

35.
Constitution of pension, Insurance or Provident Fund .

(1)
The University shall constitute, for the benefit of its officers, teachers, non-teaching staff and other employees in such manner and subject to such conditions as may be prescribed, such pension, Insurance and provident fund as it may be deem fit.

(2)
Where any such pension, insurance or provident fund has been so constituted by the University, the Government may declare that the provisions of the Provident Funds Act, 1925 shall apply to such funds as if it were a Government Provident Fund:

Provided that the University shall have power in consultation with the Finance Committee, to invest the Provident Fund amount in such manner as may be determined.

36.
Tribunal of Arbitration for disputes between the University and its staff.

(1)
Any dispute arising out of a contract between the University and any officer or teacher of the University shall, on the request of the officer or teacher concerned or at the instance of the Board, be referred to a Tribunal of Arbitration

consisting of one member nominated by the Board, one member nominated by the Officer or teacher concerned and an umpire appointed by the Chancellor. The decision of the Tribunal shall be final.

(2)

Any dispute arising out of a contract between the University and any non-teaching staff or employee may be referred by the Vice-Chancellor to a grievances committee consisting of such persons not being members of the Board of Management as may be nominated by the Board.

CHAPTER - VII University Funds, etc.,

37.

General and Other funds.

(1)

The income from fees realized by, any contribution and endowment received by, and all grants made to, the University, shall form one general fund to be called the "General Fund of the University" and all money so realized and received shall be credited to it.

(2)

The University may have such other fund and shall maintain such accounts in respect of every fund as may be prescribed.

38.

Borrowing of money.

- The University may accept money from the Government of India, the State Government, the University Grants Commission and other agencies and also borrow money from a Bank or a Corporation, for the purposes of the University:

Provided that where the University intends to borrow money from a Bank or a Corporation or both exceeding an amount of fifty thousand rupees at a time or in the aggregate, it shall obtain the prior written approval of the Government therefore.

39.

Certain restrictions in respect of financial matters.

- The University shall not divert earmarked funds for other purposes or revise the scales of pay of its staff or implement any scheme which involves any matching contribution from the Government or which imposes a recurring liability on the Government after the assistance from the sponsoring authority ceases without the prior written approval of the Government:

Provided the Finance Committee may authorize the creation and filling up of posts of teachers for a period not exceeding one year, but any such post shall not be continued or created afresh for any period beyond the said period of one year without the prior written approval of the Government.

40.

Accounts and Audit.

(1)

The annual accounts shall be submitted by the Board to the Government who shall cause an audit to be made by such persons as the Government may appoint in this behalf.

(2)

The accounts when audited shall be printed and copies thereof shall, together with the copies of the audit report, be submitted by the Board of the Government with its comments.

(3)

The Government shall cause the audit report together with the comments of the Board to be laid before the state legislature.

CHAPTER -VIII Statutes and regulations

41.

Statutes.

- Subject to the provisions of this Act, the statutes may provide for all or any of the following matters, namely:-

(a)

the constitution, powers and duties of the Authorities;

(b)

the powers, functions, duties and conditions of service of Officers other than the Chancellor;

(c)

the methods of appointment or nomination in respect of the Authorities and the manner of resolving the disputes in respect thereof ;

(d)

The procedure at meeting of such Authorities including the quorum for the transaction of business by them;

(e)

The designation, manner of appointment, powers and duties of the officers;

(f)

The qualification and manner of appointment of teachers and non teaching and other staff members;

(g)

The holding of convocations of confer degrees, diplomas and certificates;

(h)

The conferment of honorary degrees and academic distinctions;

(i)

The establishment, amalgamation, sub-division and abolition of faculties;

(j)

The establishment and abolition of departments of teaching in the faculties;

(k)

The establishment and abolition of hostels maintained by the University;

(l)

The institution of fellowships, scholarships, studentships, bursaries, medals and prizes and the conditions of award thereof;

(m)

The conditions of registration of graduates and the maintenance of register thereof;

(n)

The admission of students to the University and their enrollment and continuance as such;

(o)

The courses of study to be laid down for all degrees, diplomas and certificates of the University;

(p)

The conditions under which students shall be admitted to the degree, diploma or other courses and to the examinations of the University and be eligible for the award of degrees, diplomas and certificates. The fees to be charged for admission to the examination, degrees, diplomas and certificates of the University;

(q)

The conditions of residence of the students of the University and the levying of fees for residence in hostels maintained by the University;

(r)

The fees to be charges for courses of study provided by the University;

(s)

The conditions and mode of appointment and the duties of examining bodies and examiners;

(t)

The conduct of examinations;

(u)

The conditions of service, remuneration and allowances, including traveling and daily allowances, to be paid to officers teachers and other persons employed under the University; and

(v)

All other matters necessary for carrying out all or any of the purposes of the Act.

42.

Statutes how made.

(1)

The statutes with regard to matters set out in clauses (a) to (m) of section 41 shall be made by the Government at the

first instance.

(2)

Subject to the prior approval of the Government, the Board may, from time to time, make any statute in addition to the statutes referred to in sub-section (1), and may amend or repeal any statute in the manner hereinafter provided in this section.

(3)

The Academic Council may propose to the Board, the draft of any statute to be made by the Board and such draft shall be considered by the Board at its next meeting:

Provided that the Academic Council shall not propose the draft of any such statute, any amendments of a statute or repeal of a statute affecting the statutes, powers or constitution of any existing authority until such Authority has been given an opportunity to express its views on such proposal and any views so expressed shall be considered by the Boards.

(4)

The Board may consider any such draft as is referred to in sub-section (3) and make the statute or reject it or return it to the Academic Council for reconsideration, either in whole or part, together with any amendments which it may suggest.

(5)

Any member of the Board may propose to it the draft of any statute, any amendment of a statute or repeal of a statute and the Board may either accept or reject the proposal if it relates to a matter not falling within the purview of the Academic Council. In case such draft relates to a matter within the purview of the Academic Council, the Board shall refer it for consideration to the Academic Council, which may either report to the Board that it does not approve the proposal, which shall then be deemed to have been rejected by the Board, or forward such draft to the Board in such form as the Academic Council may approve, and the provisions of this section shall apply in the case of a draft so forwarded as they apply in the case of a draft proposed to the Board by the Academic Council.

(6)

Every statute made under sub-section (1) shall immediately after it is made, be laid before the Legislative Assembly of the State, if it is in session and if it is not in session, in the session immediately following, for a total period of fourteen days which may be comprised in one session or in two successive sessions, and if, before the expiration of the session in which it is so laid or the session immediately following, the Legislative Assembly agrees in making any modification in the statute or in the annulment of the statute, the statute shall thereafter have effect only in such modified form or shall stand annulled, as the case may be; so however that any such modification or annulment shall be without prejudice to the validity of anything previously done under the statute.

43.

Regulations.

(1)

The Authorities may make regulations consistent with this Act and the statutes, for all or any of the matters which by this Act and the statutes are to be provided for by the regulations, and also for any other matter solely concerning such Authorities and not so provided.

(2)

Every Authority shall make regulations providing for the giving of notice to the members of such Authority of the dates of meeting and of the business to be considered at meeting and for the keeping of a record of the proceedings of meetings.

(3)

The Board may direct the amendment, in such manner as it may specify, of any regulation made under this section or the annulment of any regulation made there under by any Authority.

(4)

The Academic Council may, subject to the provisions of the statutes, make regulations, providing for courses of study for the various examinations, degrees, diplomas and certificates of the University after receiving drafts of such regulations from the Board of Faculty concerned.

(5)

The Academic Council shall not amend a draft of a regulation received from the Board of a Faculty but may approve or reject it or return it to the Board of Faculty for reconsideration either in whole or in part together with any amendment which it may suggest.

CHAPTER - IX Miscellaneous

44.

Annual Report.

- The annual report of the University shall be prepared under the direct of the Vice-Chancellor and submitted by the Board to the Government one month before the annual meeting at which it is to be considered.

45.

Temporary appointment of officers.

- Notwithstanding anything contained in this Act, and until such time as the authorities are duly constituted, the Vice-Chancellor may, subject to the prior approval of the Chancellor, appoint any officer, or constitute any Committee temporarily to exercise, perform and discharge all or any of the powers, functions and duties of such Authorities under this Act.

46.

Powers of Government to transfer certain colleges and Institutions to the University.

(1)

Notwithstanding anything contained in Acharya N.G.Ranga Agricultural University Act, 1963, the Andhra Pradesh Universities Act, 1991, or the statutes made thereunder, the colleges of Veterinary, Animal and Fisheries Sciences and other institutions shown in the First and Second Schedules shall from the date notified in the Andhra Pradesh Gazette by the Government in this behalf, be disaffiliated from Acharya N.G. Ranga Agricultural University and shall be maintained by the University as constituent Colleges:

Provided that the common facilities such as Library, Auditorium, Students hostel and staff quarters and such other facilities shall be shared by Acharya N.G. Ranga Agricultural University and Sri Venkateswara Veterinary University in such manner as may be prescribed until a permanent or alternate infrastructure is provided to the latter University.

(2)

The control and management of the colleges and Institutions specified in sub-section (1) shall as from the date notified by the Government under that sub-section stand transferred to the University and all the properties and assets, and liabilities and obligations of the Acharya N.G. Ranga Agricultural University and Government in relation thereto shall stand transferred to, vest in, or devolve upon, the university.

(3)

The compensation payable by the University to Acharya N.G. Ranga Agricultural University in respect of the transfer and vesting of the properties and assets, and the devolution of liabilities and obligations, under sub-section (2) shall be such, as may be agreed upon between the two Universities. In default of such agreement, the compensation shall be determined by the Government after giving opportunity to the two Universities of making their representations in that regard and the decision of the Government in the matter shall be final.

(4)

Notwithstanding anything contained in this Act, and subject to the provisions of sub-section (5), where the control and management of any college has been transferred to the University under sub-section (2), the University shall employ teachers and other employees of the Government or Acharya N.G. Ranga Agricultural University as the case may be, who immediately before the date notified by the Government under sub-section (1), were serving conditions as may be determined by the Government in the case of a government employee or by the Acharya N.G. Ranga Agricultural University in case of an employee of that University:

Provided that no deputation or any other allowance shall be payable to any such employee:

Provided further that all the teachers and other employees of the Government or Acharya N.G. Ranga Agricultural University, as the case may be who are serving the University on the date of commencement of this Act, shall be deemed to have been employed by the University under this sub-section.

(5)

Notwithstanding anything contained in sub-section (4) every such teacher or other employee of the Government or Acharya N.G. Ranga Agricultural University, as the case may be, shall, within a period of two months from the date of commencement of this Act exercise his option to revert to the service under the Government or the Acharya N.G. Ranga Agricultural University, as the case may be, to which he belongs, failing which he shall be deemed to have been absorbed in the service of the University with effect from the date notified by the Government under sub-section (1) and shall from the said date, be governed by the terms and conditions governing the said service:

Provided that, -

(i)
the terms and conditions offered by the University to such teachers and other employees consequent on their absorption in the service of the University shall not be less favourable than those applicable to such teachers and other employees,-

(a)
immediately before the date notified by the Government under sub-section (1), as respects remuneration, leave, pension, gratuity and provident fund;

(b)
immediately before the date of commencement of this Act as respects the age of superannuation;

(ii)
the service rendered by any such teachers or other employee under the Government or the Acharya N.G. Ranga Agricultural University as the case may be, upto the date notified as aforesaid shall be deemed to be service under the University and he shall be entitled to count that service for the purpose of increments, leave, pension or provident fund and gratuity.

(6)
Notwithstanding anything in sub-section (5) every such teacher or other employee who had exercised his option within a period of two months from the date of commencement of this Act, to revert to the service under the Government or the Acharya N.G. Ranga Agricultural University, as the case may be, to which he belongs, shall be given an opportunity to exercise a revised option within a period two months, or such other period beyond two months as may be specified by the Government from the date of commencement of this Act.

(7)
Notwithstanding anything contained in sub-section (5), every such teacher or other employee who had exercised his revised option under sub-section (6) to revert to the service under the Government or the Acharya N.G. Ranga Agricultural University, as the case may be, to which he belongs, but has not been reverted in pursuance of such option, shall be given an opportunity to revise the said revised option within such period not exceeding two years as may be specified by the Government from the date of the commencement of this Act.

(8)
Notwithstanding anything contained in this Act or the statutes made thereunder, any student of the constituent College, who was studying for any examination of Acharya N.G. Ranga Agricultural University shall be permitted to complete his course in preparation therefore, and the University shall make arrangements for holding for such students examinations for such period as may be prescribed, in accordance with the curricula of studies of the Acharya N.G. Ranga Agricultural University.

(9)
The Government shall by order direct that all the institutions under the control and management of the Government conducting research in the subject of Veterinary, Animal and Fishery Sciences shall be maintained by the University, with effect from such date or dates as may be specified in the order which shall in any case be before the expiration of three years from the appointed day. The control and management of such institutions shall thereupon stand transferred to the University and all the properties and assets and liabilities and obligations, of the Government in relation thereto shall stand transferred to, vest in, or devolve upon, the University. The provisions contained in sub-sections (4) and (5) shall, mutatis mutandis, apply in respect of the teachers and other employees of the Government who immediately before such transfer were serving in or attached to that institution.

47.

Delegation of powers of the Board.

- The Board may by statutes made in this behalf, delegate to any officer or authority of the University any of the powers conferred on it by or under this act, to be exercised by such officer or authority, subject to such restrictions and conditions as may be specified in such statutes.

48.

Removal of difficulties.

- If any difficulty arises in giving effect to the provisions of this Act, the Government may by notification published in the Andhra Pradesh Gazette make such provision or give such direction, not inconsistent with the purposes of this Act, as

appears to them to be necessary or expedient for removing the difficult:

Provided that no such notification shall be issued after the expiry of five years from the appointed day.

First Schedule

Institution and Assets Proposed To Be Transferred To Sri Venkateswara Veterinary University

(A)

Colleges:

1. College of Veterinary Science, Rajendranagar including, Girls Hostel (Part of the existing Girls Hostel on the University Campus), Ruska Laboratory (Electron Microscope) of department of Microbiology, College of Veterinary Science, Rajendranagar.

Five Senior Staff Quarters near Extension (EEI) for occupation of essential staff of veterinary college. Teachers home located on the premises of Veterinary Hospital, Bhoiguda, Secunderabad.

2. College of Veterinary Science, Tirupati including,-

American Guest House located on the Veterinary College Campus.

The Regional Library of Acharya N.G. Ranga Agricultural University located on campus.

Five officers Quarters and five other quarters for the use of staff of College of Veterinary Science who are on emergency duties along with the land.

One block of Girls Hostel (recently constructed with Agriculture Human Resources Development funds of Veterinary Faculty).

Students Health Centre located on the Veterinary College campus.

Executive Engineer's officer located on the campus along with 1/3rd staff.

3. NTR College of Veterinary Science, Gannavaram.

4. Dairy Technology unit located in the College of Veterinary Science, Tirupati.

5. College of Fishery Science, Muthukur.

(B)

Polytechnics:

1. Animal Husbandry Polytechnic, Palamaner.

2. Poultry wing of SKPP multi purpose Agricultural Polytechnic, Ramachandrapuram.

(C)

Research Stations and Schemes

(i)

Non - Plan:

1. Livestock Research Institute, Rajendranagar.

2. Livestock Research Station, Lam, Guntur.

3. Livestock Research Station, Palamaner.

4. Livestock Research Station, Mahaboobnagar.

5. Livestock Research Station, Garividi.

6. Buffalo Research Station, Venkataramannagudem.

7. Livestock Research Station, Mahanandi.

8. Fisheries Research Station, Palair.

9. Fisheries Research Station, Kakinada.

10. Fisheries Research Station, Undi.

(ii)

Plan

1. Network Project on Genetic Improvement through Associate Herd Testing, Lam.

2. Network Project on Genetic Improvement through Associate Herd Testing Data Recording, Lam.

3. Network Project on Buffaloes, Venkataramannagudem.

4. All India Coordinated Research Project on Pigs, Tirupati.

5. Network Project on Sheep Improvement, Palamaner.

6. All India Coordinated Research Project on Poultry for Eggs, Rajendranagar.

7. All India Coordinated Research Project on Forage Crops, Rajendranagar.

8. Network Programme on Agricultural Byproducts and Complete Feeds, College of Veterinary Science, Rajendranagar

9. Network Project on Blue Tongue, College of Veterinary Science, Rajendranagar.

(D)

In addition Indian Council of Agricultural Research and other Adhoc Schemes as well as National Agricultural Teachers Programme, Government of India and other Schemes in Veterinary, Animal and Fishery Sciences.

Second Schedule

I. Institutions Proposed To Be Transferred From Animal Husbandry Department

1. The Campus of Veterinary Poly Clinic (VPC) Visakhapatnam, Veterinary Hospital (VH), Vijayawada, separate site in Chittoor and a part of the campus of VPC, Warangal.
2. To begin with, part of the built up area/land of Animal Health Centres at Visakhapatnam, Vijayawada, Chittoor and Warangal will be made available for the new University to set up Regional Animal Production and Health Research Laboratories.
3. Livestock Farm, Siddirampuram, Ananthapur District.
4. Livestock Farm, Mamnoor, Warangal District.
5. Buffalo Progeny testing Unit, Banavasi, Kurnool District.
6. Jersey Cattle, Banavasi, Kurnool district.
7. State Institute of Animal Reproduction, Mandapeta, East Godavari District.

II. Institutions To Be Transferred From Fisheries Departments

1. Fish farm at Ipur, Nellore district.
2. Fish farm at Rajendranagar, Ranga Reddy district.
3. Fish farm at Balabhadrapuram, East Godavari district.
4. Brackishwater farm at Polekurru, East Godavari district.

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